



File No.: EXP202300787

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On December 15, 2022, a complaint was filed with entry registration number REGAGE22e00057520908 before the Spanish Agency for Data Protection against DKV SEGUROS Y REASEGUROS, S.A.E. with NIF A50004209 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint regarding the receipt of commercial calls to the number

***PHONE.1 registered in the Robinson List.

Along with the notification, the following is provided:

- Recording of the phone call where the complainant is offered DKV services.
- Screenshot of the phones registered in the Robinson List where the complainant's number is found.
- Invoice from the complainant's service provider.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party/ALIAS, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 3, 2023, as evidenced by the acknowledgment of receipt in the file.

On March 1, 2023, a response was received by this Agency indicating that:

"It has been verified that the number indicated by the complainant belongs to a mediation agent with whom we have been operating since 2019 and who, among other services, makes telemarketing and sales calls. The name of this data processor is FUTURELAND Consultores SL. This fact was communicated to its responsible party on February 6.

DKV subscribes to service provision agreements, and in all of them, the obligations regarding data protection and proactive responsibility on their part are clearly highlighted."

"As for the Robinson List requirement, FUTURELAND Consultores SL signed the mandatory contract with ADIGITAL on December 13, 2019, not to call any user who is on the Robinson List, already adapted to the requirements of Article 23 of the LOPDGDD. This is a requirement we demand to register as data processing agents."

"After a preliminary review, on February 8, they responded indicating that they have reviewed the indicated number and that no call is recorded. They are awaiting a certificate from the operator Orange confirming that this is indeed the case. We attach evidence 2 - escalated to the provider and response, and 3. Evidence CDR all DDIs."

"..... we have requested that they demonstrate to us that this number is already registered in their advertising exclusion system and that they prove to call it, and there they provide us with this evidence where the call is not made because it is already manually recorded as such."

"The provider denies having called this complainant, so we cannot assert with guarantees the origin of the call. This provider uses as one of its established methodologies the generation of random numbers, checking against the Robinson list"

"Another avenue is to obtain it via web banners where they always request signing their privacy policy. We understand that, even if consent is obtained via the web, they check that the person is on the Robinson List, and if they are, they are not contacted despite that consent being more recent. Beyond the above, we reiterate that this is still not applicable for this requirement as we have not found evidence that the provider has called the complainant..."

THIRD: On March 15, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was

admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

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3/6

As a result of the investigations carried out, the following information has been obtained:

According to the response from DKV SEGUROS Y REASEGUROS, S.A.E, the claimed number belongs to its mediator FUTURELAND CONSULTORES, S.L.

FUTURELAND indicates to DKV that it did not make the call.

An email is attached that FUTURELAND sent to DKV, dated 01/03/2023 and registration number REGAGE23e00012844134, where it states:

"..... Let me know if you need a certificate from OCM, the supplier company of the marker, to support what I am indicating. At this moment, we have just requested a certificate from the telephone line provider (ORANGE) for calls made from that DDI to that phone number since December 13 to date."

In the same document, FUTURELAND replies in an email to DKV:

"Hello, I have managed to download the CDRs of all our calls from the month of December, and it can be seen that neither from the DDI ***DDI.1 nor from any other we have called the number ***TELÉFONO.1 throughout that month."

In the document dated 07/07/2023 and registration number REGAGE23e00045673337, DKV attaches the insurance mediator contract of FUTURELAND with DKV.

In the document, the representative of DKV states the following:

"I have been contacting the 'trusted third party' Orange, which acts as the responsible platform for that number, and I am not managing to obtain a reliable certificate stating that indeed, that number has not been the one that called."

In the document "Evidencia_2_FUTURELAND_refuerzo_seccion_protección de datos" of the same writing, in section FOURTH related to data protection, it specifies:

"The MEDIATOR (FUTURELAND) confirms that it has been provided with, has read, and accepts the Data Protection Chapter included in the main exclusive agent contract. Throughout the relationship as an agent and therefore as the data processor for the purposes of Article 28 of the General Data Protection Regulation, it is essential to take these terms into account:

If outgoing calls are to be made:

.....

- Check in advance of outgoing calls that the person is not listed on the advertising exclusion list for the channel and sector to which it corresponds and that is going to be used either on its own or by requesting that service through DKV and the Privacy Unit so that it can perform the matching against that list."

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4/6

In the document dated 07/07/2023 and registration number REGAGE23e00045674013, DKV attaches an exchange of emails between DKV, FUTURELAND, and ORANGE requesting a certificate that the call was not made. In one of the email threads, the ORANGE representative indicates:

"Hello A.A.A., As we discussed, I am waiting for the following:

- .- Verification by our technical department that indeed no calls have been made.
- .- Once the verification is obtained, we will issue a legal statement on our part indicating/confirming that no traffic has been emitted."

In a document dated 23/06/2023 and registration number REGAGE23e00041174182, MASMÓVIL, the operator of the claimant's number, confirms the receipt of the call.

In a document dated 07/06/2023 and registration number REGAGE23e00036592321, ORANGE (which is the operator of the claimed number) in response to the request for information regarding the ownership of this line and the making of the call on the reported date limits itself to responding:

"In relation to the ownership of the line ***TELÉFONO.2 on the indicated date, this company confirms that, after carrying out the necessary checks, there is no information regarding said line on December 14, 2022."

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and according to the provisions of Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection..."

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5/6

Data would have to be processed in the exercise of the powers attributed to it by other laws."

II

Final provision six, section 2 of the LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as contemplated in article 66.1.b) shall come into effect one year from the publication of this law in the "Official State Gazette." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in article 66.1.a) and to be informed of this right."

III

Conclusion

The investigations carried out by this Agency indicate that the claimed number does not belong to DKV, but to its mediator FUTURELAND, which states that it did not make the call and provides documentation of all calls made in the month of December, showing that no calls were made to the claimed number.

In addition, this Agency sent a request for information to ORANGE (the operator of the claimed number) regarding the ownership of the line and the making of the call on the date of the complaint, in which it reports that on the indicated date there is no information related to that line.

Thus, as it has not been possible to attribute responsibility for making the calls and in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to DKV SEGUROS Y REASEGUROS, S.A.E. and FUTURELAND CONSULTORES, S.L. and to the claiming party.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, C/ Jorge Juan, 6

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6/6

in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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